

Tentative Rulings and Resolution Review Hearings
September 21, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on August 6, 2026 to Plaintiff's counsel Sharona Eslamboly Hakim for failure to appear on August 3, 2026. The August 3, 2026 hearing date was set by Plaintiff when filing a Petition for Approval of Compromise of Claim for Minor on June 30, 2026. Counsel filed a written response to the Order to Show Cause on September 17, 2026, which was late as the written response was due no less than five court days prior to today's hearing. Counsel provides that a second Petition was filed because part of the first Petition was rejected. In reviewing the file, the Court notes that the Petition was filed on June 30, 2026 and the documents rejected by the clerk (duplicate Guardian ad Litem Application) were not submitted until July 9, 2026. Counsel then filed a duplicate Petition for Approval without a hearing date on July 16, 2026 and took no action to vacate the August 3, 2026 date set by Plaintiff. Defendant appeared at the August 3, 2026 hearing and the Court prepared a tentative ruling. Had counsel checked the Court's calendar, it would have been apparent that the hearing set by Plaintiff was not vacated. The court does not find that Plaintiff's counsel has presented sufficient excuse for failing to appear at

the hearing noticed by Plaintiff. Without sufficient excuse for failing to appear, sanctions are imposed against Counsel for Plaintiff Sharona Eslamboly Hakim in the amount of \$250. The clerk is directed to prepare an Order of Sanctions.

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Truth Amarant's claims. Deborah Amarant was appointed as the minor's Guardian ad Litem on September 22, 2023. Plaintiff has filed three separate minor's compromise Petitions without noting that any are an Amended Petition. They all appear to be nearly identical. The only change the Court notes is changing the bank for the "Trust Account." The Court provided the tentative ruling below on August 3, 2026, however the most recent Petition was not corrected to address any of the issues noted below. The Court will consider the Petition filed September 17, 2026 to be the operative Petition.

California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition does not contain sufficient information for the Court to find that the settlement is in the minor's best interest. No medical records were provided and it is unclear if the minor will need future medical care, including scar revision. If future medical care is necessary, information regarding possible costs needs to be provided. It is unclear how the parties arrived at a settlement of \$155,000 and no information was provided regarding insurance policy limits.

Even if the Court were to be provided sufficient information to determine that the settlement is in the best interest of the minor, there are still issues with how the money will be distributed. The Petition lists a guardianship of the estate under this case number. There is no guardianship of the estate in this case. If the intent is to place the money in a trust account (versus a blocked account), a guardianship of the estate will need to be established in probate court. Regarding costs, counsel requests a total of \$5,447.98, with the majority of the costs being attributed to One Legal, Lopez & Associates, and Attorneys to Go with no further explanation for the reasons for the cost. More detail is necessary in order for the Court to find that these costs were reasonably incurred.

Petitioner will need to file an Amended Petition that corrects all defects noted above. The future hearing date is dependent on whether Petitioner intends to establish a guardianship of the estate or if the intent is actually to place the net settlement in a blocked account. Counsel shall attend the hearing and should be prepared to inform the Court whether the intent is to place the settlement funds in a blocked account, or if a guardianship of the estate needs to be established. A new hearing date will be selected at the hearing. The Amended Petition shall be filed sixteen court days prior to the hearing. **An appearance by counsel only is necessary on today's calendar. Petitioner and the minor need not attend today's hearing.**

CONNOR VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208664

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiff Sean Connor, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on September 11, 2025 and no Proof of Service of Summons has been filed. At the previous hearing on July 13, 2026, the Court noted that a Substitution of Attorney was filed on June 4, 2026 and that Plaintiff was represented by counsel. However, because a response filed by counsel indicated that new counsel would need to be retained, the Court continued the hearing on the Order to Show Cause to today. Plaintiff was ordered to file an update regarding counsel no less than five court days prior to today's hearing. Plaintiff did not file an update regarding counsel and did not file a written response to the Order to Show Cause. **An appearance is necessary on today's calendar.**